

The state of the rule of law in Europe

Reports from National
Human Rights Institutions

Romania

2023



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Romanian Institute for Human Rights

Impact of 2022 ENNHRI rule of law reporting

Follow-up by State authorities

The Romanian Institute for Human Rights (RIHR) noted that the rule of law has been discussed in the public sphere during 2022, in light of the European Commission's decision to stop the monitoring of Romania under the Cooperation and Verification Mechanism (CVM). The European Commission stated that Romania met its commitments on judicial reform and the fight against corruption under the CVM.¹ At the same time, the rule of law has been part of the discussions in the context of the adoption of the legislative package on the justice system. This justice reform is a part of the legislative package to address the European Commission's 2022 Rule of Law Report findings and country-specific recommendations to Romania², the CVM as well as the National Recovery and Resilience Plan for Romania (NRPP).

Impact on the Institution's work

The ENNHRI 2022 Report on the state of the rule of law in Europe inspired a set of priorities for the Romanian Institute for Human Rights to safeguard the rule of law on the ground. For instance, RIHR has become an associate partner in the CERV-Rule of Law for Lawyers (ROLL) project³, which aims to promote an independent and efficient judicial system, capable of protecting fundamental rights by strengthening the knowledge and capacity of lawyers and civil society organisations in strategic litigation at national and European level. As an associate partner, RIHR will share the resulting documents, identify, and engage participants in Romania the participants being lawyers working in the field of strategic litigation.

At the same time, RIHR has been organising meetings on the 2030 UN Agenda for Sustainable Development, with the aim of integrating a human rights-based approach in the public policies developed within this framework. During the meetings the Institute highlighted the need to use a human rights-based approach in the policies developed under the 2030 UN Agenda. From this point of view, the Institution mentions SDG 10, which refers to participation in public affairs and the right to social security, as well as SDG 16 (peace, justice and strong institutions), taking into account the related rights.

Follow-up initiatives by the Institution

Following the publication of the 2022 ENNHRI Rule of Law Report, the Romanian Institute for Human Rights held meetings with representatives of the Committee for Human Rights of the Senate and of the Chamber of Deputies on the Report and Institutes' contribution therein. At the same time, RIHR has informed the Ministry of Foreign Affairs on the ENNHRI's report to which the institute had contributed into.

Implementation of regional actors' and NHRI's recommendations on rule of law (from previous year) and actions undertaken by NHRI to facilitate implementation

State authorities follow-up to regional actors' recommendations on rule of law

The establishment of the NHRI in Romania in line with UN Paris Principles

The European Commission in its 2022 Rule of Law Report recommended to Romania to continue efforts to establish a National Human Rights Institution taking into account the UN Paris Principles.⁴

Regarding the legislative framework and status of the Romanian Institute for Human Rights, in 2022, unfortunately, there was no follow-up by the Romanian state authorities to this Commission's recommendations. There were no changes or new developments regarding the institution to ensure the institutional framework compliance with UN Paris Principles.

Overall, the state authorities – the Parliament (through its two chambers) and the Government (through the Ministry of Foreign Affairs) have responded positively to the information provided by the Institute and to the RIHR contribution to the ENNHRI report as well as to the recommendations of the European Commission 2022 Rule of Law Report. In particular, the Committee on Human Rights of the Senate, specifically the chair of the committee, stressed the opportunity to organise a conference to discuss the findings of those two reports (ENNHRI's and European Commission's), Unfortunately, such a debate has not been organised. Moreover, there are no concrete legislative measures discussed by state authorities to address the challenges the Romanian Institute for Human Rights faces. This lack of any actions to support the enabling space of the Romanian Institute for Human Rights impact its effective functioning and the efforts to comply with UN Paris Principles and seek accreditation.

The Romanian Institute for Human Rights noted that as a result of the milestones to be met in the context of the NRRP, last year the Advisory Council for Impact Assessment of Legislation was established. It is a separate body set up by the Secretariat General of the Government to help with implementing the Government Decision on the approval of the content of the presentation and motivation tool, the structure of the report on the implementation of regulatory acts, the methodological instructions for carrying out impact assessment and the establishment of the Advisory Board/Council on Impact Assessment of Regulatory Acts. The Gov. Decision was adopted in the context of NRRP milestones, as legislative acts from the government have to follow a certain structure and include an explanation on the human rights impact. Moreover, a working group has been set up at the level of the Secretariat-General of the Government to develop a checklist and guidelines on the justification of legislative acts issued by the Government in terms of their impact on human rights. The Romanian Institute for Human Rights actively participates in the working group, together with government and civil society representatives with a view to contribute to developing human rights impact checklist and guidelines mentioned above.

Judiciary reforms in Romania

The Romanian Institute for Human Rights underlines that a new set of laws on the judiciary was adopted in Romania in 2022. This legislative package consisted of Law no. 303/2022 on the status of judges and prosecutors, Law no. 304/2022 on the organisation of the judiciary and Law no. 305/2022 on the Superior Council of Magistrature.⁵ The legislative package was flagged by the government, through the Ministry of Justice, as a response to the recommendations made by the European Commission in their 2022 Rule of Law Report, according to which the revision of the laws on justice should strengthen safeguards for judicial independence.⁶

At the same time, the CVM recommendation was also taken into account with regard to strengthening the independence and efficiency of the judiciary (Benchmark 1: Independence of the judiciary and judicial reform) as highlighted in the latest CVM report published in November 2022. Last but not least, the adoption of this package of laws was also listed as target in the National Recovery and Resilience Plan (Reform “Ensuring the independence of the judiciary, enhancing its quality and efficiency”) and thus the obligations were met by Romania.

In November 2022, at the request of the Romanian Ministry of Justice, the European Commission for Democracy through Law (Venice Commission) published an Urgent Opinion on the three draft laws on the justice system following their adoption by the Romanian Parliament. The Venice Commission's report generally assessed that the laws “seem to be heading in the right direction”, although they were adopted under the emergency procedure with a short time provided for public consultations. The Venice Commission underlined that “under the urgent procedure, it is not possible to cover all aspects of the three very detailed and lengthy Laws that were adopted on 17 October 2022. The complexity of the laws and their level of detail make it difficult to see how they can be applied in practice.”⁷

Justice reform referred to the Constitutional Court by the Romanian People's Advocate

The Justice Laws have been the subject of constitutional complaints after their adoption by the Parliament. The Romanian People's Advocate referred to the Constitutional Court the claim that the provisions of Article 271 of the Law on the status of judges and prosecutors are in breach of constitutional provisions⁸ by failing to regulate the liability of judges and prosecutors for non-compliance with the decisions of the Constitutional Court and the High Court of Cassation and Justice.

The Romanian People's Advocate in its referral raised the following arguments⁹:

"In view of the provisions of Article 124(3) on the obligation of judges to obey the law and those of Article 132(1), which enshrine the principle of legality in the activity of the prosecutors, together with the provisions of Article 147(4) of the Constitution on the binding nature of the decisions of the Constitutional Court, the People's Advocate considers that it is natural that the failure of judges and prosecutors to comply with these constitutional obligations should entail disciplinary liability as a guarantee of the fulfilment of their obligations towards the justiciable and the state". The constitutional principle of the independence of judges necessarily implies another principle, that of accountability, since otherwise the Constitution itself and respect for fundamental rights, freedoms and duties would become optional.

Although the case raises the issue of a legislative omission that would call into question the quality of the Constitutional Court as a negative legislator, the People's Advocate considers that, by virtue of its role as guardian of the supremacy of the Constitution, the Court cannot ignore the defect of unconstitutionality created precisely by this omission, which leads to the violation of the Constitution, by failing to regulate in the Law on the status of judges and prosecutors the disciplinary liability for non-compliance with the decisions of the Constitutional Court and the High Court of Cassation and Justice.

The Constitutional Court's judgment on the Romanian justice reforms

On 9 November 2022, the Constitutional Court in its judgment¹⁰ stated that “in the aforementioned Decision of the Constitutional Court no. 2 of 11 January 2012, the Court ruled that both its decisions and those of the High Court of Cassation and Justice in resolving the appeal in the interest of the law reflect a specific competence, that is strictly provided for by the law. Consequently, to comply with them does not prevent the courts from exercising their statutory powers. In order to make their decisions, courts must take into account and apply both the provisions of domestic law and the provisions of international treaties to which Romania is a party, in accordance with the distinctions imposed by Articles 20 and 148 of the Constitution. However, the judgments of the courts are always based on a specific case/issue; the procedural framework specific to each case always determines the interpretation and application of relevant provisions”.

At the same time, according to the Court, Article 124(3) of the Constitution, in addition to guaranteeing the independence of judges, also provides for their obligation to obey only the law. The term “law” in Article 124(3) of the Constitution “is used in its broad sense, which also includes the Constitution, as a fundamental Law, as well as all the other legislative acts, whether of equal or lesser legal force, which constitute the corpus of rules on which the act of justice must be based”. In view of this, and considering the binding character of the decisions in question is provided by the Constitution, which is a law within the meaning of Article 124 of the Constitution, the Court held that the criticisms made in relation to that constitutional text were unfounded.

After examining the text of Article 271 of the contested Act, it is noted that the failure to comply with the decisions of the Constitutional Court or those of the High Court for Cassation and Justice in the resolutions of appeals in the interest of the law was no longer regulated as a separate disciplinary offence in the text of the aforementioned law. This does not mean, however, that a judge or a prosecutor may not be subjected to

disciplinary sanctions for failure to comply with them if it is proven that he or she acted in bad faith or with gross negligence.

According to Article 272(1) and (2) of the contested law, "(1) Bad faith exists if the judge or public prosecutor knowingly violates the rules of substantive or procedural law by seeking or accepting harm to a person. (2) Gross negligence exists if the judge or public prosecutor culpably, seriously, unquestionably and unjustifiably disregards the rules of substantive or procedural law".

Consequently, each legal norm is part of a primary or secondary regulatory act. The Constitution, for its part, is a law that contains legal rules and provides for the general binding character of the decisions of the Constitutional Court [Article 147(4)]. Therefore, the violation in bad faith or gross negligence of this constitutional text constitutes a disciplinary misconduct in the sense of Article 271 letter s) of the contested law. Indeed, the new regulation no longer establishes as disciplinary misconduct any violation of the decisions of the Constitutional Court, but only those made in bad faith or with serious negligence. The same aspects should be highlighted with regards to the decisions of the High Court of Cassation and Justice in the resolutions of appeals in the interest of the law and requests for a preliminary ruling on the resolution of a question of law.

At the same time, according to Article 52(3) of the Constitution, "the state shall be liable for damage caused by judicial error. The liability of the State shall be determined in accordance with the law and shall not exclude the liability of magistrates who have exercised their duties in bad faith or gross negligence". In other words, with regard to disciplinary misconduct of judges, the legislator has correlated Articles 126(3) and 147(4) of the Constitution with Article 52(3) of the Constitution, with the result that, without affecting the binding nature of the decisions of the Constitutional Court or of the High Court for Cassation and Justice, the liability of judges and prosecutors is incurred under the conditions of Article 52(3) of the Constitution, conditions which in turn also involve the liability of the state for judicial errors.

Consequently, the Constitutional Court was of the opinion that Article 271 of the Law under review continues to provide that the failure to comply with the decisions of the Constitutional Court or of the High Court for Cassation and Justice in the resolutions of appeals in the interest of the law and requests for a preliminary rulings on the resolution of a question of law constitutes disciplinary misconduct if the judge/prosecutor performs his/her duty in bad faith or gross negligence. Therefore, Article 271 of the Law does not violate the Constitution.¹¹

State authorities follow-up to NHRI's recommendations regarding rule of law

The Romanian Institute for Human Rights in the ENNHRI 2022 Report on the state of the rule of law in Europe pointed to shortcomings regarding the functioning of justice systems as well as the institution's efforts to fully comply with UN Paris Principles. The Romanian state authorities activities in both areas are presented in the chapter above, as they also relate to the follow-up to regional actors' recommendations.

Independence and effectiveness of the NHRI

International accreditation status and SCA recommendations

Romania currently does not have an institution accredited as a National Human Rights Institution. The Romanian Institute for Human Rights (RIHR) is a non-accredited associate member of ENNHRI.

The Romanian Institute has a strong promotional mandate and has been addressing a wide range of human rights in Romania. In 2020, both the Romanian Institute and the Romanian Ombudsman (which is not an ENNHRI member and is not accredited) applied for accreditation. In 2021, a legislative proposal on the merger of the Romanian Institute for Human Rights into the National Council for Combating Discrimination was under debate in the Senate and was rejected by the Senate, as decision-making chamber.

Regulatory framework

The Romanian member indicated that the national regulatory framework applicable to the institution has not changed since January 2022.

The following actions should be undertaken to ensure that the functioning of the Romanian Institute for Human Rights meets the standards established by the UN Paris Principles:

- Implementation of the SCA recommendations of 2011¹²
- Ensure clear wording in terms of powers taking into account the UN Paris Principles
- Reduce the political component in the management (as the General Board of the Institute also consists of representatives from each political group from the Senate and Chamber of Deputies – 1/3 of board members in total; the other 2/3 consists of civil society members and academia¹³)

All those recommendations above were included in the 2 legislative proposals. The first proposal was rejected by the Senate in 2019, while the second legislative proposal on RIHR has been declared as unconstitutional.

Enabling and safe space

There have been no developments to strengthen an enabling space for the Romanian Institute for Human Rights to independently and effectively carry out its work compared to last year. Communication and engagement with state authorities on this matter, as well as the state authorities follow-up to RIHR's recommendations or RIHR's access to information and policy making still, remain insufficient.

There is a lack of support from the Parliament for the drafting of a new legislative proposal to reform the RIHR, taking into account the SCA recommendations of 2011 and the evolution of the institutional system in Romania compared to 1991 (the year in which the Institute's law was adopted).

The Romanian Institute for Human Rights underlines that:

- The Law establishing the Institute dates from 1991 and has not been modified since, although in the past two years there were two legislative proposals in this regard, aimed at strengthening the observance of the Paris Principles.
- For the institute the law on unitary pay has led to several inconsistencies in terms of payment/employment and duties of the respective positions, some of them being assimilated to different fields of the public administration (Ministry of Education, Ministry of Culture).
- Due to low salaries, compared to the wages in other institutions with similar duties and functions, the Institute is facing a loss of staff, as they are attracted by higher salaries in other institutions/fields. If in 2020, the Institute had a staff deficit of 31% (the unoccupied positions being specialised positions), in spring 2023/currently the Institute has a staff deficit of 60% (70% of the vacant/unoccupied positions being specialised positions).
- Although, overall, the role of RIHR in the implementation of Recommendation (EU) 2022/758 on protecting journalists and human rights defenders who engage in public participation from manifestly unfounded or abusive court proceedings (SLAPP) is a positive development for the institute, all these new tasks and roles require more employment positions, in addition to occupying the existing empty positions. Given the aforementioned context, the pressure on the Institute to fulfil its mandate will grow and it will also have an impact on the existing staff.

In July 2023, ENNHRI sent a letter to the Romanian Ministry of Justice with serious concerns about the lack of enabling environment and political support to the RIHR, and recommended relevant authorities to take urgent steps to ensure that the RIHR can carry out its work to promote and protect human rights in Romania in an independent and effective manner. The letter points to issues related to lack of adequate funding, staffing, financial autonomy, and the need for an adequate legal framework for the RIHR's operation, in line with the UN Paris Principles.

Developments relevant for the independent and effective fulfilment of the NHRIs' mandate

There have been no developments compared to last year with regards to changes possibly impacting the independence and effective fulfilment of the institution's mandate. What is important, RIHR stresses that the lack of commitment of the state authorities with regards to the necessary changes of the Institute's status (the expected adoption/amendment of the law on RIHR taking into account the developments in public administration, as the law on the functioning of the Institute have not changed since 1991) is making it increasingly difficult for RIHR to carry out its work. At the same time, the lack of reform leads to a more difficult management of human resources, which has a direct impact on the activity of the institute as a whole (involvement in fewer projects, selection of fewer areas of interest in the field of human rights given the limited number of staff).

It is worth mentioning that the Institute carried out promotion and information activities on Recommendation 2021/1 of the Committee of Ministers of the Council of Europe as well as on other recommendations in the field of human rights and NHRIs developed by the Council of Europe.

Human rights defenders and civil society space

Laws, measures and practices negatively impacting on civil society space and/or on human rights defenders' activities

Law No 361/2022 on the protection of whistle-blowers

In 2022, Law No 361/2022 on the protection of whistle-blowers was adopted, but some civil society organisations pointed out that anonymous reporting is "regulated in a way that discourages the investigation of complaints and, in practice, it will lead to their faster dismissal"¹⁴. According to these organisations, following an amendment tabled during the legislative process, anonymous reports will only be examined and processed if there is "strong evidence" of violations of the law, according to Article 6(2) of the law.

In this context, the civil society organisations stress that, according to the Directive, whistleblowers provide information, not evidence.

It should be noted that this legislative act aims to transpose Directive (EU) 2019/1937 on the protection of persons who report breaches of Union law, and that the first draft of this legislative act (adopted by Parliament in July 2022) was the subject of a complaint of unconstitutionality. The Constitutional Court rejected the constitutional objection as unfounded. However, even after the Constitutional Court has rejected the unconstitutional complaint, the President requested the re-examination of the draft law considering that an improper transposition of the Directive could lead to infringement procedure or to applying the conditionality mechanism.¹⁵

Draft law amending Law no. 60 of 23 September 1991 on the organisation and conduct of public assemblies

Also contested by civil society organisations (CSOs), the draft law amending Law no. 60 of 23 September 1991 on the organisation and conduct of public assemblies is said to contain provisions that may restrict the right to peaceful assembly. CSOs have pointed out that the proposed solutions may lead to abuses and limit the right to demonstrate by prohibiting the use of public roads¹⁶. To draw attention to the reported irregularities, representatives of civil society have also formulated a series of amendments concerning: the use of public roads, the notification system, ensuring the protection of public security and grounds for offences.¹⁷ The Human Rights Committee of the Chamber of Deputies asked RIHR for an opinion on this draft law.¹⁸ Following the analysis, the Institute emphasised that certain elements are not in line with the interpretations of Article 2 of the ICCPR of the Human Rights Committee and the decisions of the ECtHR, such as those relating to the use of public roads, the notification system, the use of firearms and the holding of simultaneous assemblies. The opinion also noted the lack of clear correlation between the articles of the draft law, which may cause confusion.

Legislative proposal amending the Law no.50/1991 on the authorisation of construction works, amending the Law no.350/2001 on territorial and urban planning and amending the Law on administrative litigation no.554/2004

Civil society organisations have also expressed concern about a legislative proposal in the field of urban planning, as the new provisions restrict access to justice by reducing the prescription period for appeals against decisions approving land-use planning documentation from 5 years to 1 year, as well as by setting the time limit for bringing an action for annulment under administrative proceedings, by reference to the time the act in question was submitted. Organisations can request the annulment of acts in term of 60 days. This period is calculated from the moment they have received an answer to a preliminary complaint or after expiry of the term to submit a preliminary complaint. The current period is 6 months. If a preliminary complaint is not mandatory, the annulment of an act can be requested 60 days after the last publicity operation. In practice, these new provisions will only allow the organisations concerned to bring environmental disputes before the courts in a very short time, which is insufficient.¹⁹

A complaint of unconstitutionality has been lodged after the adoption of the law, however the Constitutional Court dismissed as unfounded the objection of unconstitutionality, in the context of the a priori constitutional review of the draft act. "The Court found that the claims of the authors of the objection of unconstitutionality are unfounded and that the provisions of the contested law fully comply with the constitutional requirements deriving from Articles 1(5), 11, 20(2), 21, 53 and 124(2) of the Constitution, in conjunction with those of the Convention on Access to Information, Public Participation in Decision-making and Access to Justice in Environmental Matters (Aarhus Convention)."²⁰

Draft law amending Law no. 60 of 23 September 1991 on the organisation and conduct of public assemblies

Another legislative proposal initiated by members of Parliament²¹ has also provoked a negative reaction from civil society organisations. The proposal aims to amend the law on associations and foundations, but the proposed solutions may violate certain fundamental rights, including the right of access to justice. The authors of the legislative proposal have stipulated that an association can only bring legal action if a number of conditions are cumulatively met, namely: the administrative act being challenged must be related to the object of activity and purpose of the association, the administrative act must have been issued after the establishment of the association, the association must have been established for more than two years and must have been active according to the state in areas related to the administrative act to be challenged and, last but not least, it must deposit a bond of 1% of the value of the investment to guarantee compensation for the damage caused to the beneficiaries of the administrative act to be challenged. These provisions would also apply to proceedings already pending, which is contrary to the principle of non-retroactivity of laws. According to CSOs, such provisions would reduce their capacity for strategic litigation.

Cases of harassment of journalists

With regards to the Romanian Institute for Human Rights' human rights monitoring and reporting of practices that could negatively impact on civil society space and/or reduce human rights defenders' activities, RIHR highlighted that there had been cases of harassment of journalists. Some of these were brought to public attention by civil society organisations. One case involved the alleged leaking of information from a criminal investigation and the publication of personal images. In the second case, a journalist's equipment and other electronic devices were confiscated, leading to the blocking of a publication and violating the confidentiality of journalistic sources.^{22 23}

Access to and involvement of civil society actors in law and policy making

With regards to serious shortcomings in the access to and involvement of civil society actors in law and policy making, RIHR indicates that, in most cases, civil society organisations or associations representing vulnerable groups are not involved in the drafting of legislation at all. However, they can intervene when the act is subject to public debate (according to the legislation in force). Although the law stipulates that the explanatory memorandum of a draft legislative act must include the results of the public consultation, this element is often overlooked by relevant authorities. Sometimes certain comments are included in the text of the draft legislation, but the reasons for rejecting other comments/proposals is not always clear. These issues have been discussed by the Secretariat-General of the Government Working Group on human rights impact.

In addition, CSOs mention that the transparency of the decision-making process is not always adequate and that they often face obstacles in the area of access to information.²⁴

Abuse of laws to intimidate civil society actors, including strategic litigation against public participation (SLAPPs)

Several examples of abuse of laws to intimidate civil society actors have been highlighted by the Romanian member throughout this report. However, RIHR has not undertaken any monitoring activities due to a lack of resources.

With regards to laws or measures been introduced to safeguard against manifestly unfounded and abusive lawsuits (SLAPPs), the Institution mentioned some are in the process of implementation. In December, the Ministry of Justice sent a letter to RIHR asking to become the focal point in this area. RIHR would also organise training programmes for journalists and human rights defenders and organise information campaigns on SLAPP procedures.

The Institute has responded positively to this request and is developing an action plan and consulting with partners and other relevant institutions. Therefore, actions on this topic will be carried out from 2023 onwards.

NHRI's role in promoting and protecting civil society space and human rights defenders

The Romanian Institute for Human Rights promotes and protects civil society space and human rights defenders by:

- Providing opinions on draft laws regarding this area at the request of relevant state authorities;
- Carrying out human rights monitoring on laws, measures and practices potentially impacting civic space;
- Becoming a focal point on protection against SLAPPs

Artificial Intelligence

NHRI's actions to address challenges regarding the use of artificial intelligence

The Romanian Institute for Human Rights underlines that the impact of AI on human rights, democracy and the rule of law is a relatively new field.

The Institute will include the topic of AI and its impact on human rights, rule of law and democracy in its multi-annual strategy. The strategy envisages the research, information and documentation activities which are included in the annual activity plan for 2023.

Moreover, this theme has been addressed in articles in the Institute's journals since 2020.²⁵ A section on the Institute's website on AI and digital technologies and their impact on human rights is currently under construction²⁶.

The Romanian Institute for Human Rights has been engaged in consultations on the regional conventions that are being drafted on artificial intelligence through ENNHRI's Working Group on Artificial Intelligence.

NHRI's recommendations to national and regional authorities

The Romanian Institute for Human Rights highlights that better communication is needed on the issue of compliance between artificial intelligence (AI) and human rights, the rule of law and democracy. The role of AI and its potential impact on human rights need to be better understood by the society as well as by decision makers. The Parliament should be informed about the impacts of AI on society and human rights in order to better understand the potential threats to human rights protection.

Such raising awareness activities can come through a campaign carried out by the institutions working on the field (e.g. Ministry of Digitalisation) or in collaboration with state-mandated institutions protecting human rights (namely RIHR, People's Advocate, National Council for Combating Discrimination), in order to highlight not only the advantages of the use of AI, but also the possible impact on human rights, rule of law and democracy.

Other challenges in the areas of rule of law and human rights

Deterioration concerning the area of media freedom persists in Romania. According to Reporters Without Borders' (RSF) 2022 index, Romania ranked 56th, compared to 48th in 2021. As RSF also points out, the challenges in the area of media freedom are exacerbated by the non-implementation of the existing law.²⁷

¹ [European Commission - press release - Romania and CVM](#)

² [European Commission, 2022 Rule of Law Report, Country Chapter on the rule of law situation in Romania](#)

³ [CERV Project](#)

⁴ [European Commission, 2022 Rule of Law Report, Country Chapter on the rule of law situation in Romania](#)

⁵ Legislative package on justice system ([303/2022](#)) ([304/2022](#)) ([305/2022](#))

⁶ [European Commission, 2022 Rule of Law Report, Country Chapter on the rule of law situation in Romania](#)

⁷ See Venice Commission - [Opinion n° 1105 / 2022](#) - Romania, Urgent Opinion on three laws concerning the justice system

⁸ Articles 1(5), 124(3), 126(3), 132(1) and 147(4) of the Romanian Constitution

⁹ [The People's Advocate referral](#)

¹⁰ See Constitutional Court, Decision no. 520 of 9 November 2022 on the objections of unconstitutionality concerning the Law on the Status of Judges and Prosecutors, points 330-333 ([In Romanian](#))

¹¹ Ibidem, points 334-336

¹² [SCA Report May 2011](#)

¹³ [Members of the General Council of the Romanian Institute for Human Rights](#)

¹⁴ Press release by CSOs on the adoption of the Law on whistleblowers [Comunicat de presă CSO cu privire la adoptarea Legii avertizorilor de integritate](#)

¹⁵ [Timeline – the Law on the protection of whistleblowers](#)

¹⁶ Opinion of civil society organisations on the draft law on public assemblies [Opinia organizațiilor societății civile cu privire la proiectul de lege privind adunările publice](#)

¹⁷ CSO amendments on the draft law on public assemblies [Amendamente CSO la proiectul de lege privind adunările publice](#)

¹⁸ [Opinion of RIHR on the draft law on public assemblies Punct de vedere al IRDO asupra proiectului de lege privind adunările publice](#)

¹⁹ Legislative proposal amending the Law no. 50/1991 on the authorisation of construction works, amending the Law no.350/2001 on territorial and urban planning and amending the Law on administrative litigation no.554/2004

²⁰ [News on the Decision of the Constitutional Court](#)

²¹ [Legislative proposal for amending and supplementing Government Ordinance 26/2000 on associations and foundations](#)

²² [Open letter: Ten European and international organisations call for prompt and independent investigations into the harassment of Emilia Sercan](#)

²³ [Open letter: The Directorate for the Investigation of Organised Crime and Terrorism relapsing into harassment of journalists](#)

²⁴ Article: [The Public Health Directorate of Braila makes access to information of public interest more difficult through various bureaucratic](#)

²⁵ Please see, Andreea Moroianu, [Elemente privind inteligența artificială, democrația și drepturile fundamentale, in Drepturile Omului](#) (Elements on Artificial Intelligence, Democracy, and Fundamental Rights), 1/2021, IRDO

²⁶ [Article on Human rights in the era of Artificial Intelligence](#), Andreea Moroianu

²⁷ [Country Index 2022. Romania. Reporters Without Borders](#)